

26STCP01336 26STCP01336

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C834%2C07%2F16%2F2026

Source SHA-256: a266c81fa0aa9ed88f5af05d99963900637443ba8244f17e85a97d29741d3a44

Case Number: 26STCP01336 Hearing Date: July 16, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

¿

DONALD CONDON,

Petitioner(s),

vs.

SUCCESSOR

AGENCY OF POMONA, et al.,

Respondent(s).

Case No.:

26STCP01336

Hearing Date:

July 16, 2026

[TENTATIVE]

ORDER RE: DEMURRER

Respondent Inland Valley Human Society ("Respondent") demurs to petitioner Donald Condon's ("Condon") petition.

The demurrer is sustained.

I.

Factual Allegations

The petition alleges in pertinent part as follows:

Respondent and the City of Pomona ("City") unlawfully seized Petitioner's [1] animals and property in reliance on invalid documents. (Pet. ¶ IV, ¶¶ 1-2.) Respondent and the City then refused to return the property and denied Petitioner access to the property, despite Petitioner's demands. (Pet. ¶ IV, ¶¶ 3-4.) Respondent and the City's actions injured Petitioner's animals, Rocky and Boy. (Pet. ¶ IV, ¶ 5.)

II.

Procedural History

On April 3, 2026, Condon filed his petition against the City and Respondent. Proofs of service filed April 6, 2026 shows Condon served the summons and petition on the City and Respondent by personal service on April 6, 2026.

On May 13, 2026, Respondent demurred to the petition. On June 29, 2026, Respondent filed a reply. The reply indicated that Petitioner served its opposition on Respondent. However, as of the originally noticed hearing date (July 9, 2026), Petitioner had not filed any opposition papers with the Court.

On June 30, 2026, the Court denied Condon's motion to vacate orders in Case No. 25STCP00565 ("Potentially Dangerous Dog Case").

On July 9, 2026, the Court continued the hearing on the demurrer to July 16, 2026 and directed Condon to file with the Court the same opposition papers he previously served on Respondent. The Court likewise directed Respondent to file the copy it received. No leave was granted for

either party to submit new or additional papers.

On July 9, 2026, apparently after the hearing, Condon filed two purported oppositions to the demurrer and a “supplemental declaration” (all time-stamped 11:12 a.m.). The second filing says it is “amended” in the caption but does not clearly explain how it is amended. The “supplemental declaration” was purportedly signed on July 8, 2026, the day before the original hearing. Thereafter, on July 10, 2026, Petitioner filed another opposition to the demurrer.

III.

Legal Standard

A demurrer tests the legal sufficiency of the pleading alone and will be sustained where the pleading is defective on its face.

A demurrer may be asserted on any one or more of the following grounds: (a) the court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) the person who filed the pleading does not have legal capacity to sue; (c) there is another action pending between the same parties on the same cause of action; (d) there is a defect or misjoinder of parties; (e) the pleading does not state facts sufficient to constitute a cause of action; (f) the pleading is uncertain (“uncertain” includes ambiguous and unintelligible); (g) in an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, oral, or implied by conduct; (h) no certificate was filed as required by Code of Civil Procedure (“CCP”) section 411.35 or (i) by CCP section 411.36. (CCP § 430.10.)

Accordingly, a demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters; a demurrer does not test the evidence or other extrinsic matters. (CCP § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the pleading includes attachments and incorporations by reference (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94); it does not include inadmissible hearsay. (*Day v. Sharp*, (1975) 50 Cal.App.3d 904, 914.)

IV.

Evidentiary Issues

Respondent seeks judicial notice of the following exhibits:

(1) the Order after Hearing filed March 6, 2025 in the Potentially Dangerous Dog Case (RJN Ex. 1); (2) the Order Dismissing Appeal – Failure to Procure Record and Remittitur in the appeal of the Potentially Dangerous Dog Case (RJN Ex. 2); (3) the Order after Hearing filed on July 15, 2025 in 25STCP01783 (“Vicious Dog Case”) (RJN Ex. 3), (4) the Minute Order dated July 16, 2025 in the Vicious Dog Case (RJN Ex. 4); (5) the Minute Order dated February 2, 2026 in the Vicious Dog Case (RJN Ex. 5); (6) the Minute order dated March 25, 2026 in the Vicious Dog Case (RJN Ex. 6); (7) the Minute Order Dated May 8, 2026 and Vexation Litigant Orders in case no. 25PSCV02281 (“Civil Case”) (RJN Ex. 7); (8) the Minute Order After Non-Jury Trial and Judgment in case no. 25WCSC01247 (“Small Claims Case”) (RJN Ex. 8); (9) the Minute Order dated March 2, 2026 and Dismissal Without Prejudice in case no. 26PSCV00685 (RJN Ex. 9); and (10) the pleadings, declarations by Mayra Langerica (“Langerica”), and ex parte application filed April 23, 2026 in this case.

The Court need not take judicial notice of documents already filed with the Court in this matter. Request 10 is therefore denied. The remaining requests are for court records subject to judicial notice and are therefore granted. (Evid. Code § 452(d).)

Respondent also objects to Petitioner's evidence in support of his opposition. As noted previously, a demurrer lies from defects on the face of the pleading or from facts that a court may judicially notice. (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) It is generally improper to submit evidence that is not judicially noticeable in opposition to a demurrer. Respondent's objections to the City of Pomona Council Report, Resolution No. 2021-51, and the Animal Shelter and Control Service Agreement are nevertheless overruled. However, while admitted, the Court assigns the evidence little weight given the standards on demurrer.

V.

Analysis

Respondent demurs to the petition on the grounds that the petition fails to state facts showing entitlement to relief because (1) Condon lacks standing; (2) Condon is barred from relief by the unclean hands doctrine; (3) the petition is untimely; (4) the petition fails to show a ministerial duty; (5) assuming Condon has standing, he had an adequate remedy at law; and

(6) assuming Condon has standing, the petition is barred by res judicata.

1.

Condon Lacks Standing to Bring the Petition

Respondent argues that Condon is not the owner of the dogs and therefore has no standing to seek mandamus.

Ordinarily, legal standing for mandamus requires that the petition have a beneficial interest in issuance of the writ. (Rialto Citizens for Responsible Growth v. City of Rialto (2012) 208 Cal.App.4th 899, 913.) "A petitioner is beneficially interested if he or she has 'some special interest to be served or some particular right to be preserved or protected over and above the interest held in common with the public at large.'" (Ibid.) The beneficial interest must be direct and substantial. (Ibid.) This interest must be an interest greater than that of the general public. (Flora Crane Service, Inc. v. Ross (1964) 61 Cal.2d 199, 203-04.)

Given the uncertainty regarding which of Petitioner's July 9 and July 10 submissions corresponds to the opposition served on Respondent, the Court has reviewed each filing. Within them, Petitioner makes a limited reference to public interest standing, relying on Board of Social Welfare v. County of Los Angeles (1945) 27 Cal.2d 98. The Court finds the argument insufficient to demonstrate standing.

The Supreme Court of California has recognized "a 'public interest' exception to the requirement that a petitioner for writ of mandate have a personal beneficial interest in the proceedings" when the issue is one of public right and the object of the writ action is to obtain enforcement of a public duty. (Common Cause v. Board of Supervisors, (1989) 49 Cal.3d 432, 440, citing Green v. Obledo (1981) 29 Cal.3d 126, 144.) Public interest standing may apply "when the public duty is sharp and the public need weighty." (SJJC Aviation Services, LLC v. City of San Jose (2017) 12 Cal.App.5th 1043, 1058 ["SJJC Aviation Services"].) Conversely, "where the claim of 'citizen' or 'public interest' standing is driven by personal objectives rather than 'broader public concerns,' a court may find the litigant to lack such standing." (Ibid., citing Save the Plastic Bag Coalition v. City of Manhattan Beach (2011) 52 Cal.4th 155, 165.)

It is undisputed that Langarica, not Condon, owns the dogs.

(Pet., Exs. A-B.) Nothing in the petition or other provided documents shows any connection between Condon, the dogs, or the underlying proceedings. (See generally Pet.) Similarly, the petition does not identify any public interest in issuance of the writ. (See generally Pet.) The facts, harm, and remedies in the petition are limited to Respondent, the City, and the Superior Court's handling of and conclusions regarding Langarica's dogs. (See Pet. at 5-9.) Even if the pleadings did show a sharp public duty and a weighty public need, Langarica's direct involvement in the action—to the point of intermittently naming herself as a petitioner (e.g. Pet. at 4, 9; see generally Langarica Decl.)—shows Condon's claim for public interest standing is driven by personal objectives rather than broader public concerns. (See SJJCA Aviation Services at 1058.) Based on the foregoing, the pleadings on their face do not show Condon has any beneficial interest in issuance of the writ, nor do they show Condon can claim public interest standing.

Accordingly, Condon lacks standing to pursue the petition.

2.

This Court Cannot Grant Relief

Respondent also argues the petition is barred by the doctrines of res judicata or collateral estoppel, and that Condon had an adequate remedy at law in appeal. Neither of these arguments are availing for the same reason Condon lacks standing: Condon has no substantive right or interest in issuance of the writ. However, both arguments point to a fundamental issue in Condon's action. This Court cannot grant Condon the relief he seeks without essentially overruling orders issued by other departments of the Los Angeles Superior Court.

"One department of the superior court cannot enjoin, restrain, or otherwise interfere with the judicial act of another department of the superior court. ... A judgment rendered in one department of the superior court is binding on that matter upon all other departments until such time as the judgment is overturned." (Glade v. Glade (1995) 38 Cal.App.4th 1441, 1450; Silverman v. Superior Court (1988) 203 Cal.App.3d 145, 151.)

Condon seeks return of the dogs, various corrections of allegedly improper actions by Respondent, a declaration that Respondent's actions were unlawful, and compensation. (Pet. at 8-9.) However, the Superior Court for the County of Los Angeles has already adjudicated the relevant issues

in the Potentially Dangerous Dog Case and Vicious Dog Case, heard by Departments 25 and 26, respectively, of the Spring Street Courthouse. Those departments issued orders in those cases finding Boy and Rocky potentially dangerous and vicious, respectively. (E.g. RJN Exs. 1, 3.) Most critically, the court in the Vicious Dog Case ordered that Langarica turn Rocky and Boy over to Respondent and prohibited Langarica from owning any dog for three years. (RJN Ex. 3.) Therefore, the Court cannot grant the petition without directly contradicting the orders of the other departments.[2]

As this Department has no authority to review the actions of another department, it cannot grant Condon relief even if Condon had standing to bring the instant petition.

The Court has reviewed each of Petitioner's July 9 and July 10, 2026, filings. Even assuming the "supplemental declaration" is properly advanced to oppose a demurrer, none of the submissions address the core defects identified in the demurrer: lack of standing, lack of a mandatory duty, the existence of adequate legal remedies, untimeliness under the statutory scheme, and the preclusive effect of prior judgments. The filings therefore do not alter the Court's analysis.

VI.

Conclusion

Condon lacks standing to pursue the petition, and the Court cannot grant the requested relief. The demurrer to the petition is SUSTAINED without leave to amend.

Respondent is directed to file and serve a proposed judgment of dismissal within five court days. An OSC re: dismissal is set for August 20, 2026 at 9:30 a.m. If a judgment of dismissal has been entered by that date, the OSC will be taken off calendar.

All other hearings are advanced to this date and vacated.

Date: July 16, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

.

Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

.

If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

.

Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

.

If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The petition names Condon as petitioner in its caption. (Pet. at 1.) In other places, it refers to Condon and Mayra Emilia Langarica ("Langarica") both. (E.g., Pet. at 4.) Langarica verified the petition. (Pet. at 9.) The petition uses feminine pronouns in reference to "Petitioner." (See Pet. at 5.)

[2]

To the extent the petition may be construed as an appeal under Food and Agricultural Code section 31622, such appeal is—even if the Court assumes *arguendo* that it was properly filed in this Department—untimely. (Food and Ag. Code § 31622(a); RJN Ex. 3; Pet. at 1.)